

22LBCV00495 22LBCV00495

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-08-25

Motion: DEFENDANTS' MOTION FOR ATTORNEY'S FEES

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Case Number: 22LBCV00495 Hearing Date: August 25, 2026 Dept: A

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

MARIA PARIZE, et al.,

Plaintiffs,

vs.

LAW

OFFICE OF T. MAE YOSHIDA, et al.,

Defendants.

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CASE NO: 22LBCV00495

[TENTATIVE]

ORDER RE: DEFENDANTS' MOTION FOR ATTORNEY'S FEES

Dept.

A

DATE:

August 25, 2026

TIME:

8:30 A.M.

COMPLAINT

FILED: 09/14/2022

2nd

AMENDED COMPLAINT FILED: 02/25/2024

TRIAL:

None set

MOVING

PARTY: Defendants T. Mae

Yoshida; Law Office of T. Maye Yoshida; Shogo J. Garcia; and Law Offices of

Yoshida & Garcia

RESPONDING

PARTY: Plaintiffs Maria Parize and

Marco Parize

1. Background

This was an action for

malicious prosecution. Plaintiffs Maria Parize and Marco Parize (collectively,

"Plaintiffs") alleged that defendants Long Beach Memorial Medical Center; T.

Mae Yoshida; Law Office of T. Maye Yoshida; Shogo J. Garcia; and Law Offices of

Yoshida & Garcia prosecuted hospital liens against Plaintiffs without

probable cause, causing Plaintiffs damages and costs.

On May 21,

2024, the court granted a special motion to strike the complaint pursuant to

Code of Civil Procedure § 425.16.

2. Discussion

Defendants T.

Mae Yoshida; Law Office of T. Maye Yoshida; Shogo J. Garcia; and Law Offices of

Yoshida & Garcia (collectively, “Movants”) move for attorney’s fees

incurred at the trial level and on appeal. Movants contend that they are

entitled to attorney’s fees pursuant to Code of Civil Procedure § 425.16, subd.

(c). In opposition, Plaintiffs contend that Movants are not entitled to

attorney’s fees because Movants were represented in this action by Defendant

Shogo J. Garcia as a partner of Movants.

The court

finds Plaintiff’s contention that Movants waived fees incurred in the trial

court proceedings lacks merit. (See, Carpenter

v. Jack in the Box Corp. (2007) 151 Cal. App. 4th 454, 468.) The court further finds that the one-minute

delay in filing the motion was not prejudicial, and that a denial of the motion

on this basis would be draconian and would not serve the ends of justice,

particularly where Plaintiff granted a substantial extension of time to

non-moving defendant. The court will

therefore consider the motion on the merits.

Pursuant to

Code of Civil Procedure § 425.16, subd. (c)(1), a prevailing defendant in an anti-SLAPP motion to strike is entitled to their fees and costs. However, a party who represents themselves in pro per may not recover their fees and costs, even when that party is an attorney. (Trope v. Katz (1995)

11 Cal.4th 274, 292 (Trope).) Where an attorney litigates on behalf of their own firm and its partners or associates who acted on the firm's behalf, the firm is considered to be representing itself and cannot recover its fees and costs. (Carpenter & Zuckerman, LLP v. Cohen (2011) 195

Cal.App.4th 373, 377-378 (Carpenter).)

Movants

request the corrected amount of \$37,308, consisting of a total of 40.7 hours and \$14,488 for trial court proceedings, and 60.9 hours and \$22,820 for appellate proceedings. (Reply, p. 8; Garcia

Decl., ¶ 8, emphasis added.)

An attorney

cannot form an attorney-client relationship with himself, nor can a law firm form an attorney-client relationship with its own partner or associate attorney acting on its behalf. (Sands & Associates v. Juknavorian (2012)

209 Cal.App.4th 1269, 1282 (Sands).)

Defendant Garcia, by his own admission, seeks to recover fees that were,

at least in part, incurred on his own behalf, and on behalf of his firm Law

Offices of Yoshida & Garcia. Defendant

Garcia is undisputedly an attorney with the Law Offices of Yoshida & Garcia. Defendant Garcia declares that he is not a

partner, member, shareholder, associate, employee, or independent contractor of

the Law Office of T. Mae Yoshida, and has never been except for his employment

as an associate there between 2015 and 2017. (Garcia Suppl. Decl., ¶ 2.) Fees incurred by Defendant Garcia in his own

defense and the defense of Law Offices of Yoshida & Garcia are

unrecoverable.

With respect

to fees incurred on behalf of Yoshida and the Law Office of T. Mae Yoshida,

Movants cite *Ramona Unified School Dist. v. Tsiknas* (2005) 135

Cal.App.4th 510 (*Ramona*) for the proposition that where a defendant in

an anti-SLAPP motion also represents other, non-affiliated defendants, their

fees are recoverable. *Ramona* held

that *Trope* does not preclude the award of attorney fees to a defendant

who is an attorney and who rendered legal services to non-attorney

co-defendants under an attorney-client relationship, merely because the

attorney defendant was a codefendant with the nonattorney clients to whom she

provided legal assistance. (*Id.*,

at p. 525.)

Plaintiff,

however, contends that no fees are recoverable due to Garcia's employment by

Yoshida & Garcia and a purported role as general counsel of the Law Office

of T. Mae Yoshida. Under Sands,

there is a bright-line rule that where a firm holds an attorney out to the

public as "of counsel," the firm cannot recover attorney's fees as a prevailing

party when represented by that attorney. (Sands, supra, 209

Cal.App.4th at p. 1298.) Plaintiffs have provided a copy of the website of the

Law Office of T. Mae Yoshida as of August 11, 2026. (Cowles Suppl. Decl. ¶ 3,

Exs. D, E.) This website lists Defendant Garcia as "of counsel" for the Law

Office of T. Mae Yoshida. (Cowles Suppl. Decl. Exs. D, E.) Plaintiffs contend this evidence serves to

bar Defendant Garcia's recovery.

However, in Sands, the lawyer at issue was of counsel to the firm

rendering legal services. Here, the

lawyer at issue, Mr. Garcia, was at some point of counsel to the Law Office of

T. Mae Yoshida, not the firm rendering legal services, Yoshida &

Garcia. Therefore, Sands is

distinguishable. Garcia's prior

employment and/or service of counsel to Law Office of T. Mae Yoshida do not

serve to bar recovery for fees rendered by Garcia through Yoshida & Garcia.

Moreover, the

court does not find the facts proffered by Plaintiffs to be conclusive even if

credited. Instead the court finds the

reply declaration of Garcia to be persuasive and more credible and

reliable. The court resolves the

conflicting evidence in favor of Garcia, who has personal knowledge of the

relationship between the parties as set forth in great detail in his reply

declaration. The court finds that Garcia

has not been an officer, director, shareholder, employee or general counsel of

the Law Office of T. Mae Yoshida since 2017, and did not hold any such position

when the fees at issue were incurred.

It is settled

that fees are recoverable under section 425.16(c) where an attorney-client

relationship exists, without regard to payment. (*Rosenaur v. Scherer*

(2001) 88 Cal.App.4th 260, 283 [pro bono]; *Macias v. Hartwell* (1997) 55

Cal.App.4th 669, 675-676 [fees paid by another]; *Ketchum v. Moses* (2001)

24 Cal.4th 1122, 1132-1134 [contingency fee]; *Ramona*, supra, at 524.)

Garcia has established that he was separately retained as counsel for Ms.

Yoshida and the Law Offices of T. Mae Yoshida, and he is charging a fee for his

representation. There is no other underlying compensation arrangement between the parties. (Garcia Decl., ¶ 11.).

The court

therefore concludes that fees attributable to the representation of Yoshida and the Law Office of T. Mae Yoshida are recoverable. Under Carpenter and Trope, Defendant Garcia's fees incurred on his own behalf and on behalf of Yoshida & Garcia are unrecoverable.

Based on an

examination of the billing records provided, as well as Defendant Garcia's declaration, the court finds Garcia's hourly rate of \$400 is reasonable, the \$120 hourly rate of law clerk "MA" is reasonable, and the total fees billed reasonable both at the trial court level and the appellate level for the defense of all represented defendants are reasonable.

Based on the

foregoing, the court exercises its discretion and will disallow recovery by Shogo

J. Garcia and Law Offices of Yoshida & Garcia. The court will allow recovery by T. Mae Yoshida and the Law Office of T. Mae Yoshida in the amount of 50% of the fees and costs requested, which the court finds to be an equitable division under the circumstances.

3. Conclusion

Based on the

foregoing, the court GRANTS the motion of T. Mae Yoshida and the Law Office of

T. Mae Yoshida for attorney's fees brought against Plaintiffs Maria Parize and

Marco Parize, and awards them fees in the amount of \$18,654.00. The court

DENIES the motion as to Defendants Shogo J. Garcia and Law Offices of Yoshida

& Garcia.

Movants are ordered to give notice.

IT IS SO ORDERED.

DATED: August 25, 2026

Hon. Elizabeth L. Bradley

Judge of the Superior Court